

OREGON STATE HOSPITAL

POLICIES AND PROCEDURES

SECTION 5: Human Resources

POLICY: 5.002

SUBJECT: Family Medical Leave

**POINT
PERSON:** HUMAN RESOURCES DIRECTOR

APPROVED: DOLORES MATTEUCCI
SUPERINTENDENT

DATE: JANUARY 10, 2022

I. PURPOSE AND APPLICABILITY

- A. This policy establishes guidelines for protected leaves of absence from Oregon State Hospital as described in policy and state and federal regulations.
- B. This policy applies to all staff.

II. POLICY

- A. Oregon State Hospital adopts Department of Administrative Services policy 60.000.15, "Family and Medical Leave."

III. DEFINITIONS

- A. "Staff" means employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital.

IV. RELATED OSH POLICIES AND PROTOCOLS

- 5.013 General Leave
- 5.015 Staff Separation
- 5.016 Inmate Workforce
- 5.028 Electronic Time Management System
- 5.031 Flexible Work Solutions
- 9.010 Interns

V. REFERENCES

- 29 USC § 201 *et seq.*
- 29 USC § 2601 *et seq.*

29 CFR Part 825

38 USC §4301 *et seq.*

42 USC § 12101 *et seq.*

Americans with Disabilities Act (ADA), as amended (including the ADA Amendments Act)

Fair Labor Standards Act (FLSA), as amended

Federal Family and Medical Leave Act (FMLA), as amended

Oregon Administrative Rule §§ 839-009-0200 - 839-009-0460

Oregon Administrative Rule §§ 166-300-0010 - 166-300-0045

Oregon Administrative Rule §§ 101-030-0005 - 101-030-0027

Oregon Family Leave Act (OFLA), as amended

Oregon Military Family Leave Act

Oregon Revised Statute §§ 659A.090 - 659A.099

Oregon Revised Statute § 659A.150 - 659A.186

Oregon Revised Statute § 659A.306

Uniform Services Employment and Reemployment Rights Act (USERRA), as amended